

22TRCV00858 22TRCV00858

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-30

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Case Number: 22TRCV00858 Hearing Date: July 30, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

ELI
MATTHEWS,

Plaintiff

Case No.:

22TRCV00858

vs.

[Tentative]
RULING RE:

MOTION
FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION

DA POINT

LOUNGE, LLC; GODSON UDUHIRI; and DOES 1-5, inclusive,

Defendants.

Hearing

Date: July 30, 2026

Department

P, Judge David K. Reinert

Motion

for Summary Judgment or Summary Adjudication

Moving

Party: Plaintiff

Eli Matthews

Responding Party: None

RULING

The court

considered the moving papers. Plaintiff's Motion for Summary Judgment is GRANTED.

PROCEDURAL BACKGROUND

On September 30, 2022, Plaintiff Eli Matthews ("Plaintiff") filed a complaint against Defendants Da Point Lounge, LLC ("Da Point"), Godson Uduhiri ("Uduhiri"), and DOES 1 through 5, inclusive, alleging four causes of action for: (1) Breach of Contract; (2) Express Indemnity; (3) Implied Indemnity; and (4) Equitable Indemnity.

On April 13, 2026, Plaintiff filed the instant motion. No opposition was filed.

FACTUAL BACKGROUND

On

September 30, 2014, Plaintiff acquired the real property located at 14115 Crenshaw Boulevard in Hawthorne, California (the "Subject Property"). (UMF No. 1.) On January 30, 2017, Plaintiff and Uduhiri entered into a written lease agreement (the "Lease") concerning the Subject Property. (UMF No. 2.) Pursuant to the Lease, Uduhiri operated a restaurant, Da Point Lounge, inside three contiguous units of the Subject Property. (UMF No. 2.) Uduhiri failed to pay Plaintiff a total of \$68,844.55 in rent. (UMF No. 8.)

Uduhiri

and Da Point (collectively, "Defendants") were cited and fined by the City of Hawthorne (the "City") for several violations of the City's municipal code including non-licensure, fire and building code violations, and the operation of an illegal after-hours lounge. (UMF No. 3.) Plaintiff, as landlord, was cited and fined by the City for Defendants' municipal code violations. (UMF No. 4.)

On April

10, 2020, the City sued Defendants for public nuisance. (UMF No. 5.) Plaintiff paid the City nearly \$200,000.00 for damages caused by Plaintiff's tenants, a total which included the fines assessed against Plaintiff for Defendants' misconduct. (UMF No. 6.) On September 28, 2021, Plaintiff sold the Subject Property to a third party. (UMF No. 7.)

LEGAL STANDARD

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." *Aguiar v. Atl. Richfield Co.* (2001) 25 Cal. 4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) Summary adjudication may be granted as to one or more causes of action within an action, or one or more claims for damages. (Code Civ. Proc. Section 437c(f).)~~~~~

A plaintiff moving for summary adjudication bears the burden of showing there is no defense to a cause of action. (Code Civ. Proc. Section 437c(a).) The burden can be met if the plaintiff “has proved each element of the cause of action entitling the party to judgment on that cause of action.” (Code Civ. Proc. Section 437c(p)(1); see also Aguilar, supra, 25 Cal.4th at 853.) If the plaintiff meets this burden, it is up to the defendant “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (Code Civ. Proc. Section 437c(p)(1); see also S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co. (2010) 186 Cal.App.4th 383, 388.)

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DISCUSSION

Moving Party’s Argument

Plaintiff argues that he is entitled to summary judgment against Uduhiri because Uduhiri entered into a written lease agreement with Plaintiff, failed to pay rent as required by the Lease, and failed to abide by the City municipal code which resulted in Plaintiff incurring fines of \$8,000.00. Plaintiff seeks \$68,844.55 in unpaid rent, \$8,000.00 to compensate for the City fines paid by Plaintiff, and \$37,177.94 in prejudgment interest through July 30, 2026.

Merits of the Motion

A.

Breach of Contract

A cause of action for breach of contract must plead “(1) the contract, (2) plaintiff’s performance or excuse for non-performance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.” (Acoustics, Inc. v. Trepte Constr. Co. (1971) 14 Cal.App.3d 887, 913.) A written contract can be pled by alleging its making and attaching a copy to the complaint or by alleging the making and the substance of the relevant terms. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Here, Plaintiff has provided a copy of the Lease between Plaintiff and

Uduhiri, attached as Exhibit 2 to Plaintiff's declaration. (Pltf Decl., Exh.

2.) The Lease provides that "[t]he Premises will be used for only the following permitted use (the "Permitted Use"): Restaurant, lounge, bar, & other entertainment purposes contingent upon landlord and city approval. Neither the Premises nor any part of the Premises will be used at any time during the term of this Lease by Tenant for any purpose other than the Permitted Use." (Pltf. Decl., Exh. 2, pp. 2-3.) The Lease also provides that "the Tenant will pay a base rent of \$2,500.00, payable per month, for the Premises (the "Base Rent")," and the Base Rent will increase to \$2,800.00 in the second year of the Lease, \$3,000.00 in the third year of the Lease, and will continue to increase by six percent in each year after. (Pltf. Decl., Exh. 2, p. 3.)

Plaintiff also offers a copy of a rent roll which contains copies of Plaintiff's bank statements and copies of cancelled checks provided by Uduhiri. (Pltf. Decl., ¶ 7; Exh. 8.) The court finds that taken together with the Lease provisions specifying the amount of Base Rent due per month and the following increases in Base Rent by year, the documents provided in Exhibit 8 support Plaintiff's request for damages in the amount of \$68,844.55 in unpaid rent.

Therefore, the court finds that Plaintiff has met his burden of proving the elements of his breach of contract claim. Defendants have not opposed Plaintiff's motion so they have not met their burden.

Accordingly, Plaintiff's Motion for Summary Adjudication as to Plaintiff's first cause of action is GRANTED.

B.

Implied & Equitable Indemnity

"[T]here are only two basic types of indemnity: express indemnity and equitable indemnity." (Prince v. Pacific Gas & Electric Co. (2009) 45 Cal.4th 1151, 1157.) Implied contractual indemnity is treated as a form of equitable indemnity. (Ibid.)

"To state

a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant." (Platt v. Coldwell Banker Residential Real Estate Services (1990) 217 Cal.App.3d 1439, 1445, fn.7.)

Plaintiff offers copies of the citations issued by the City to Uduhiri and Da Point for violations of the City municipal Code. (Pltf. Decl., Exh. 3.) Plaintiff also offers copies of the citations he received from the City as Exhibit 4 to his declaration. (Pltf. Decl., Exh. 4.) Plaintiff declares that as the "vicariously responsible landlord, [Plaintiff] was cited and fined by the City for the defendants' code violations." (Pltf. Decl., ¶ 4.) The court has reviewed Exhibit 4 and finds that Plaintiff's total fines add up to \$7,400.00, rather than the \$8,000.00 requested by Plaintiff. The court also notes that many of the citations offered by Plaintiff are difficult to discern due to faded writing.

The court finds that Plaintiff was harmed by the actions of the Defendant because the Plaintiff was cited by the City for the actions of Defendant. Given the contractual relationship between the parties, the court finds that Plaintiff has shown a valid claim for equitable indemnity against Defendant for the citations.

However, as the court has previously noted that many of the copies of citations offered by Plaintiff are illegible, and the court has also found that Plaintiff's request for \$8,000.00 based on fines paid by Plaintiff is inconsistent with the monetary amounts that appear to be reflected in Exhibit 4, which total \$7,400. Notwithstanding the discrepancy between the evidence and the demand, the court finds that there is a legal basis to shift the burden of the City's citations from the Plaintiff to the Defendants.

Accordingly, Plaintiff's Motion for Summary Adjudication as to Plaintiff's third and fourth causes of action is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Summary Judgment is GRANTED.

Moving party is ordered to file a judgment which is consistent with this ruling and give notice of this ruling to Defendants.